



EUROPEAN CENTRAL BANK
EUROSYSTEM

EN

OPINION OF THE EUROPEAN CENTRAL BANK

of 12 August 2026

on the introduction of a ban on crypto-asset activities, and measures concerning
the application of Regulation (EU) 2023/1114
(CON/2026/26)

Introduction and legal basis

On 28 May 2026 the European Central Bank (ECB) received a request from the Marshal of the Polish Parliament for an opinion on a draft law amending the Law on unfair commercial practices¹ (hereinafter the 'first draft law'). On 10 July 2026 the ECB received another request from the Marshal, for an opinion on a draft Law on the crypto-asset market² (hereinafter the 'second draft law' and, together with the first draft law, the 'draft laws').

The ECB's competence to deliver an opinion is based on Articles 127(4) and 282(5) of the Treaty on the Functioning of the European Union and Article 2(1), fifth and sixth indents, of Council Decision 98/415/EC³, as the draft laws relate to payment and settlement systems and rules applicable to financial institutions insofar as they materially influence the stability of financial institutions and markets. In accordance with Article 17.5, first sentence, of the Rules of Procedure of the European Central Bank, the Governing Council has adopted this opinion.

1. Purpose of the draft laws

1.1 Purpose of the first draft law

- 1.1.1 The purpose of the first draft law is to introduce a ban on the carrying out of activities related to 'crypto-assets', as defined in Regulation (EU) 2023/1114 of the European Parliament and of the Council⁴ (hereinafter 'MiCAR'), in Poland.
- 1.1.2 In particular, the first draft law amends the Law on unfair commercial practices by adding, as an unfair market practice, the carrying out of 'crypto-asset activities' irrespective of whether they meet the general criteria for establishing unfair market practices, in particular, that such activities are contrary to good business practices and significantly distort or are likely to distort the market behaviour of the average consumer before, during or after the conclusion of the contract for their provision. For this purpose, in the first draft law, a 'crypto-asset' is defined by a cross-reference to

¹ Projekt ustawa z dnia o zmianie ustawy o przeciwdziałaniu nieuczciwym praktykom rynkowym.

² Projekt ustawa z dnia o rynku kryptoaktywów.

³ Council Decision 98/415/EC of 29 June 1998 on the consultation of the European Central Bank by national authorities regarding draft legislative provisions (OJ L 189, 3.7.1998, p. 42, ELI: <http://data.europa.eu/eli/dec/1998/415/oj>).

⁴ Regulation (EU) 2023/1114 of the European Parliament and of the Council of 31 May 2023 on markets in crypto-assets, and amending Regulations (EU) No 1093/2010 and (EU) No 1095/2010 and Directives 2013/36/EU and (EU) 2019/1937 (OJ L 150, 9.6.2023, p. 40, ELI: <http://data.europa.eu/eli/reg/2023/1114/oj>).

the definition in MiCAR⁵ and ‘crypto-asset activities’ is defined to mean the issuance, offer to the public, admission to trading of crypto-assets or other services related to crypto-assets, in particular ‘crypto-asset services’ as defined in MiCAR.

- 1.1.3 The first draft law provides that where there is a reasonable suspicion of crypto-asset activity, the Internal Security Agency must block the crypto-asset account⁶ on written request from the President of the Office of Competition and Consumer Protection, in which case a telecommunications undertaking providing internet access services must prevent access to the websites using an internet domain to conduct crypto-asset activities by removing it from the information and communication technology (ICT) systems of telecommunications undertakings.
- 1.1.4 The first draft law establishes a new criminal offence of carrying out crypto-asset activities, with proposed penalties ranging from six months to eight years of imprisonment, and up to ten years if the value of the property accumulated as a result of the crypto-asset activity is high, without however defining what constitutes such high value.
- 1.1.5 The first draft law provides that entities carrying out crypto-asset activities on the date of its entry into force must cease all crypto-asset activities within two months of that date. Entities must stop accepting new funds or crypto-assets from clients; close trading platforms for crypto-assets, associated accounts, communication and information systems, and websites; and settle all liabilities owed to customers. Moreover, they are required to return all client funds, together with any resulting financial benefits or crypto-asset equivalents due to clients derived from the contracts or investments, within the same two-month period, without imposing any fees or charges on clients. If they fail to comply, such obligations will be transferred to designated entities.
- 1.1.6 According to the explanatory memorandum accompanying the first draft law, the policy rationale behind the first draft law is primarily consumer protection in the light of the rapid growth of the crypto-assets market and its lack of regulation in Poland, and therefore its propensity for fraud and manipulation. In addition, the explanatory memorandum also points to financial stability-related considerations.

1.2 *Purpose of the second draft law*

- 1.2.1 The purpose of the second draft law is to ensure the application in Poland of MiCAR and Regulation (EU) 2023/1113.
- 1.2.2 In particular, the second draft law designates *Komisja Nadzoru Finansowego* (KNF, Financial Supervision Authority) as the competent authority responsible for carrying out the various functions and duties under MiCAR. It also introduces tools for the effective exercise of supervision by the KNF and the implementation of the provisions of MiCAR.
- 1.2.3 The second draft law specifies the obligations of issuers of asset-referenced tokens and e-money tokens and of crypto-asset service providers (CASPs), including the obligation for these issuers to provide the KNF with information on their activities for the carrying out of KNF’s assessment.

⁵ See Article 3(1), point (5), of MiCAR.

⁶ As defined in Article 3, point (19), of Regulation (EU) 2023/1113 of the European Parliament and of the Council of 31 May 2023 on information accompanying transfers of funds and certain crypto-assets and amending Directive (EU) 2015/849 (OJ L 150, 9.6.2023, p. 1, ELI: <http://data.europa.eu/eli/reg/2023/1113/oj>).

- 1.2.4 Pursuant to the second draft law, the KNF is to be authorised to impose sanctions on offerors, issuers of asset-referenced tokens or e-money tokens, persons seeking admission to trading of crypto-assets and CASPs. In addition, the KNF's supervisory powers will extend to the imposition of pecuniary penalties on professionals arranging or executing transactions related to crypto-assets. The KNF will also have the power to impose administrative sanctions on CASPs.
- 1.2.5 The second draft law introduces criminal liability for offences committed, among other things, in connection with the issuance of asset-referenced tokens or e-money tokens or the provision of crypto-asset services.
- 1.2.6 The second draft law also determines the scope of professional confidentiality related to the provision of crypto-asset services and the sharing of confidential information.
- 1.2.7 Lastly, the second draft law introduces the possibility to make statements in electronic form for activities relating to crypto-asset services or concerning the offer to the public and other activities carried out as part of the activities of the entities regulated by MiCAR.

2. General observations

- 2.1 The ECB refers to its opinion⁷ on the European Commission's proposal for a regulation on markets in crypto-assets⁸ in which the ECB welcomed the original initiative of the Commission to establish a harmonised framework at Union level for crypto-assets and related activities and services and the aim of addressing the different levels of risk posed by each type of crypto-asset, balanced with the need to support innovation. The ECB also expressed its belief that a Union harmonised framework is critical to prevent fragmentation within the single market⁹.
- 2.2 The ECB understands that one of the main reasons for the first draft law was the recent collapse of Zondacrypto, a cryptocurrency exchange and trading platform for digital assets operating in Poland, which is now subject to investigation for suspected fraud, misappropriation and possible links to organised networks and political interference¹⁰.

3. Compliance of the draft laws with MiCAR

- 3.1 MiCAR lays down uniform and directly applicable requirements for the offer to the public and admission to trading on a trading platform of crypto-assets other than asset-referenced tokens and e-money tokens, of asset-referenced tokens and of e-money tokens, as well as requirements for CASPs.¹¹ Pursuant to MiCAR, uniform requirements include an authorisation for CASPs that can be seamlessly 'passport' across all 27 Member States¹². MiCAR does not permit Member States to derogate from its uniform rules by imposing either stricter or more lenient rules.

⁷ Opinion CON/2021/4 of the European Central Bank of 19 February 2021 on a proposal for a regulation on Markets in Crypto-assets, and amending Directive (EU) 2019/1937 (OJ C 152, 29.4.2021, p. 1). All ECB opinions are published on EUR-Lex.

⁸ COM(2020) 593 final.

⁹ See paragraph 1.1 of Opinion CON/2021/4.

¹⁰ See, for example, <https://www.gov.pl/web/pr-katowice/sledztwo-w-sprawie-zondacrypto>, Polish public prosecutor press release, published on 17 April 2026.

¹¹ See Article 1(1) of MiCAR.

¹² See Article 59(7) and Articles 63 and 65 of MiCAR.

- 3.2 As the first draft law introduces an outright prohibition on the provision of crypto-asset services with criminal liability, the ECB considers that it would be incompatible with MiCAR¹³. A complete national ban on CASPs would directly contradict MiCAR's objective of creating a unified single market for crypto-assets¹⁴. In addition, such a ban would not recognise the right of CASPs authorised in a Member State to provide their crypto-asset services across all 27 Member States. National law cannot block or ban a passported entity that complies with MiCAR.
- 3.3 MiCAR requires Member States, among other things, to designate the competent authorities responsible for carrying out the functions and duties provided for in that Regulation¹⁵ (such as granting authorisation to a CASP) and to ensure that these competent authorities have the power to impose appropriate administrative penalties and take other administrative measures in relation to the infringements specified therein¹⁶.
- 3.4 As the second draft law, among other things, designates the KNF as competent authority under MiCAR, and the relevant transitional period to ensure full compliance of CASPs with MiCAR (i.e. also to obtain an authorisation from their competent national authority) expired on 1 July 2026¹⁷, the ECB understands that the second draft law aims to ensure Poland's compliance with MiCAR.
- 3.5 The ECB notes that Article 57 of the second draft law specifies that the Governor of Narodowy Bank Polski issues opinions, observations or comments on behalf of Narodowy Bank Polski in the cases provided for in MiCAR. To ensure consistency with MiCAR, the ECB recommends that Article 57 of the second draft law also refers to Article 43(8) of MiCAR which provides for the relevant central bank's competence to submit observations and comments to the EBA in the context of the reassessment of whether certain asset-referenced tokens still classify as significant.

This opinion will be published on EUR-Lex.

Done at Frankfurt am Main, 12 August 2026.

[signed]

The President of the ECB

Christine LAGARDE

¹³ The ECB notes that the European Commission has initiated an infringement procedure against Hungary (INFR(2025)2174) for failing to fully comply with MiCAR following the introduction of a new authorisation regime for 'exchange validation services' with criminal liability, which is not provided under MiCAR; see European Commission, January infringements decisions, available on the Commission's website at www.ec.europa.eu.

¹⁴ According to Article 105 of MiCAR, national authorities may prohibit or restrict the marketing, distribution or sale of certain crypto-assets or crypto-assets with certain specified features; or a type of activity or practice related to crypto assets, only following prior notification to the European Securities and Markets Authority (ESMA) or European Banking Authority (EBA) and in a targeted and temporary way.

¹⁵ See Article 93(1) of MiCAR.

¹⁶ See Article 111 of MiCAR.

¹⁷ See Article 93 and Article 143(3) of MiCAR.